

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Anthony Cennamo	Team: Squad #05	CCRB Case #: 201607177	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 08/14/2016 9:45 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/14/2018	Precinct: 121		
Date/Time CV Reported Sun, 08/14/2016 11:48 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/22/2016 12:20 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Frank Callaghan	21843	946816	121 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Alexander Deguzman	02254	950292	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Frank Callaghan	Discourtesy: Police Officer Frank Callaghan spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Frank Callaghan	Abuse: Police Officer Frank Callaghan did not obtain medical treatment for § 87(2)(b)	B . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with IAB on August 14, 2016, generating log number 16-28924. The complaint was received at the CCRB on August 22, 2016 via log number 2016-29106.

On August 14, 2016, at approximately 9:45 p.m., § 87(2)(b) and her sister, § 87(2)(b) arrived at § 87(2)(b)'s home located at § 87(2)(b) in Staten Island. § 87(2)(b) noticed damage to the home and called 911.

As they waited for officers to arrive, § 87(2)(b) fell on the stairs and injured her foot. § 87(2)(b) escorted § 87(2)(b) inside the residence during which time PO Alexander Deguzman and PO Frank Callaghan of the 121st Precinct responded. The officers began to speak with one of the tenants in the building, § 87(2)(b). § 87(2)(b) approached both of the officers and told them that she was the one who called 911. PO Callaghan then told § 87(2)(b) “Shut your fucking mouth and stay the fuck away from me” (**Allegation A**). § 87(2)(b) then entered the garage and noticed that multiple tools were missing. When § 87(2)(b) went back outside to inform the officers, they were already driving away.

§ 87(2)(b) went inside her home and called 911 again. § 87(2)(b) also requested that the officers ask for an ambulance. PO Deguzman and PO Callaghan returned to the residence. § 87(2)(b) told PO Callaghan four times to call for an ambulance for § 87(2)(b) but PO Callaghan ignored her request (**Allegation B**). PO Callaghan proceeded to explain that only a resident of the home can file a complaint report. The officers then left the scene and § 87(2)(b) drove § 87(2)(b) to the hospital on her own. § 87(2)(b) was not summonsed or arrested as a result of this incident.

There is no video footage of this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) did not want to mediate, § 87(2)(b)
- As of November 2, 2016, § 87(2)(b) has not filed a notice of claim.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

§ 87(2)(b) has filed one other complaint with the CCRB, § 87(2)(b)

PO Callaghan has been a member of the NYPD for eight years and has been the subject of two prior complaints that contained three allegations. None of these allegations were substantiated against him. § 87(2)(g)

Potential Issues

§ 87(2)(b) stated that a female tenant whom the officers spoke with along with § 87(2)(b)'s fiancé, § 87(2)(b) were present for the allegations. A Lexis Nexis/CLEAR searched was conducted for potential female tenants that live in the condominium complex of § 87(2)(b) in Staten Island. The results showed multiple female tenants on the first floor. The EVENT summary listed another female 911 caller for August 14, 2016, identified as § 87(2)(b). Calls were placed to § 87(2)(b)'s number, who did not answer and voicemails were left. § 87(2)(b) was contacted on September 2, 2016. However, he

expressed no interest in participating in the complaint against these officers and thus did not provide a verified statement. Additional calls were made to § 87(2)(b) who did not answer or hung up the phone when reached.

§ 87(2)(b) was the individual in question who needed medical attention. However, given that § 87(2)(b) did not witness or hear the interaction between § 87(2)(b) and the officers at any point, she was not interviewed.

Findings and Recommendations

Allegation A -Discourtesy: Police Officer Frank Callaghan spoke discourteously to

§ 87(2)(b) According to § 87(2)(b) on August 14, 2016 at 9:45 p.m., she arrived at § 87(2)(b) in Staten Island, a condominium complex, with her sister § 87(2)(b) when she noticed that someone may have vandalized the property. § 87(2)(b) called 911 and approached the steps of the front stoop when § 87(2)(b) tripped and fell onto the floor, injuring her foot. § 87(2)(b) walked with § 87(2)(b) to her § 87(2)(b) apartment and waited for officers to arrive. PO Callaghan and PO Deguzman arrived on the scene and § 87(2)(b) walked outside to speak with them. § 87(2)(b) saw PO Callaghan speaking with an unknown female tenant, identified by the investigation as § 87(2)(b) who lives on the first floor and told him that she was the original 911 caller. PO Callaghan turned around to face § 87(2)(b) and told her, “Shut your fucking mouth and stay the fuck away from me.” § 87(2)(b) called 911 to report this discourteous language. § 87(2)(b) alleged that she continued to speak to the 911 operator as she argued with PO Callaghan about why she called 911. § 87(2)(g)

Based on § 87(2)(b)'s testimony, § 87(2)(b) was the only other civilian present when this alleged discourteous remark was spoken. As noted prior, this individual could not be reached and therefore no witness statement could be obtained.

A review of the 911 recording of the call between § 87(2)(b) and this operator (Board Review 04), showed the officers were not present when she reported the discourtesy. The audio did not record any profanity used by PO Callaghan against § 87(2)(b) and the 911 operator did not acknowledge that this may have occurred (Board Review 02-05).

According to PO Callaghan, he responded to two 911 calls for the same location after both calls were made and duplicated. This resulted in only one EVENT summary produced for these calls in which § 87(2)(b)'s number, the original 911 caller, was the only number reflected (Board Review 01). PO Callaghan recalled that he did not get the name of the 911 caller who reported that her car was keyed at any point and there was no notation of her name in his memo book (Board Review 06), but later learned that § 87(2)(b) was the caller who reported that her property was vandalized.

Once he arrived, PO Callaghan stepped out of the car and was approached by § 87(2)(b) who claimed that her car was keyed. PO Callaghan noticed that § 87(2)(b) stood at the top of her stoop next to a male whose name he later learned was § 87(2)(b). § 87(2)(b) yelled out that she was the one who called 911 and not to speak to § 87(2)(b). PO Callaghan's attention was drawn to § 87(2)(b) as she asked him to view the damage to her car. PO Callaghan investigated the damage to the car with PO Deguzman. At this point, § 87(2)(b) approached PO Callaghan directly behind him and yelled that the officers should not speak to § 87(2)(b). PO Callaghan immediately stepped

away from § 87(2)(b) as she acted aggressively and PO Callaghan told § 87(2)(b) not to surprise an officer from behind. § 87(2)(b) stated she was glad she filed a complaint against him a few months ago and could not wait to see him for their mediation session on August 19, 2016. PO Callaghan denied that he ever told § 87(2)(b) “Shut the fuck up and stay the fuck away from me” or used profanity at any point.

PO Deguzman § 87(2)(g) denied that PO Callaghan used profanity at any point. PO Deguzman corroborated that § 87(2)(b) approached PO Callaghan from behind and spoke in an aggressive tone toward him throughout the incident.

§ 87(2)(g)
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§ 87(2)(g)
§ 87(2)(g). Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B – Abuse of Authority: Police Officer Frank Callaghan did not obtain medical treatment for § 87(2)(b)

According to § 87(2)(b) she returned outside with § 87(2)(b) § 87(2)(b)s former fiancée, after she called 911 again to report the missing tools from the garage. PO Callaghan and PO Deguzman arrived on the scene and immediately went to the first floor apartment to speak with § 87(2)(b) § 87(2)(b) asked why the officers were not speaking to her first and PO Callaghan stated that a female tenant who lives at this address alleged that § 87(2)(b) keyed her car. § 87(2)(b) denied this and told PO Callaghan that she wanted a criminal complaint report filled out for the missing tools. PO Callaghan told her to wait and at this point § 87(2)(b) requested that PO Callaghan should call an ambulance for her sister, § 87(2)(b) who remained on the second floor in pain from her earlier injury. PO Callaghan ignored § 87(2)(b) as she asked four more times for PO Callaghan to call an ambulance. § 87(2)(b) was ignored and then went back inside the apartment. § 87(2)(b) told § 87(2)(b) that she would drive her to the hospital herself and they got in their car and left. § 87(2)(b) § 87(2)(b) did not interact with the officers again.

§ 87(2)(b) was not present for any of the allegations and § 87(2)(b) did not want to be involved with § 87(2)(b)s complaint when contacted.

PO Callaghan stated that he was called back to the scene after § 87(2)(b) reported that there were tools missing from their shed. PO Callaghan and PO Deguzman arrived on the scene and spoke with § 87(2)(b) as soon as they arrived. § 87(2)(b) was accompanied by § 87(2)(b) § 87(2)(b) § 87(2)(b) yelled at both of the officers that they had not taken a criminal complaint report for the missing tools. PO Callaghan did not recall that § 87(2)(b) claimed tools were missing at any point during the prior incident. PO Callaghan and PO Deguzman asked § 87(2)(b) if she lived at this address, which she stated she does not. PO Callaghan then explained that they could not speak with § 87(2)(b) about filing her own criminal complaint report in regard to the incident because she did not live at the address of the incident location. PO Callaghan then told § 87(2)(b) that he could file a report considering that he lived at the address. PO Callaghan did not recall ever learning that § 87(2)(b) was injured at any point

during the incident and was never asked to provide medical attention at any point during the incident. § 87(2)(b) then went inside the residence and did not interact with PO Callaghan or PO Deguzman again.

§ 87(2)(g) .

Therefore, the investigation must recommend that **Allegation B** be closed as **Unsubstantiated**.

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date